AI IN JUDICIARY

INTRO

CONTEXT

- SC formulated draft Regulations for use of AI in Courts, 2026

DEBATES

- Innovation vs independence
- human primacy vs algorithmic justice
- administrative AI vs adjudicatory AI
- imported tech vs swadeshi

PROS

- admin efficiency
- accessibility
- advanced research
- backlog monitoring

CONS

- judicial hallucinations
- algorithmic bias
- threat to liberty
- black box AI
- violates constitutional morality
- accountability vacuum

CHALLENGES

- digital divide
- data protection
- lack of swadeshi tech

DRAFT REGULATIONS 2026

- human primacy
- absolute accountability
- fairness & non-discrimination
- transparency & explainability
- inclusivity & accessibility
- apex body for regulation
- EIA

QUOTES / VIEWS

INITIATIVES

- e-courts
- Kerala - 24x7 ON court

GLOBAL

- China
- USA

SUGGESTIONS

- Regulation 43

CONCLUSION

- HITL model